

CIVIL FORMS
4-952

Supreme Court Approved
October 31, 2025

4-952. Petition to expunge arrest records and public records; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO
COUNTY OF _____
_____ JUDICIAL DISTRICT COURT

In re _____, No. _____
Petitioner.

PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-4 [NMSA-1978]
(Upon Release without Conviction)

Petitioner, [] unrepresented by counsel/[] represented by counsel (select one), under NMSA 1978, Section 29-3A-4 [NMSA-1978], respectfully moves the Court to expunge the arrest records and public records related to the case and charge(s) below.

1. Information about Petitioner:
Date of Birth: _____
Current Mailing Address: _____
City: _____ State: _____ Zip Code: _____
Home Phone #: _____ Work Phone #: _____ Cell #: _____
Other names or aliases by which Petitioner has been known (include prior names, nicknames, or aliases, especially if your arrest records may reflect a different name):

2. [] Petitioner has no pending expungement cases in the _____ Judicial District.
[] Petitioner has the following pending expungement case or cases in the _____ Judicial District (provide expungement case numbers for any expungement cases that may be currently pending before the _____ Judicial District Court):

3. [] Petitioner has never applied for expungement and been denied.
[] Petitioner has applied for expungement and been denied in the following expungement cases (provide the expungement case numbers): _____

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4-952. Petition to expunge arrest records and public records; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO
COUNTY OF Example County
_____ JUDICIAL DISTRICT COURT

In re Jordan Avery Reyes, No. _____
Petitioner.

PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-4 [NMSA-1978]
(Upon Release without Conviction)

Petitioner, [] unrepresented by counsel/[] represented by counsel (select one), under NMSA 1978, Section 29-3A-4 [NMSA-1978], respectfully moves the Court to expunge the arrest records and public records related to the case and charge(s) below.

1. Information about Petitioner:
Date of Birth: 1991-04-17
Current Mailing Address: 118 Maple Street
City: Springfield State: XX Zip Code: 01234
Home Phone #: _____ Work Phone #: _____ Cell #: _____
Other names or aliases by which Petitioner has been known (include prior names, nicknames, or aliases, especially if your arrest records may reflect a different name):

2. [] Petitioner has no pending expungement cases in the _____ Judicial District.
[] Petitioner has the following pending expungement case or cases in the _____ Judicial District (provide expungement case numbers for any expungement cases that may be currently pending before the _____ Judicial District Court):

3. [] Petitioner has never applied for expungement and been denied.
[] Petitioner has applied for expungement and been denied in the following expungement cases (provide the expungement case numbers): _____

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3
4 4. The following case(s) and record(s) are the subject of Petitioner’s Petition to Expunge
5 *(Include additional pages, if necessary):*
6 District Court case number(s):
7 Metropolitan/Magistrate/Municipal Court case number(s):
8
9 Law Enforcement Agency case number(s):
10 Arrest number(s):
11
12 5. The following appellate court cases(s) are related to Petitioner’s Petition to Expunge:
13 Court of Appeals case number(s):
14 Supreme Court case number(s):
15
16 [5-] 6. Petitioner was released without conviction for the following charges: *(Complete for each*
17 *charge sought to be expunged. Include additional pages if necessary.)*
18 (1) Date of arrest:
19 Name of offense and statute/ordinance number:
20 Final disposition of offense: *(check one)* [] acquittal or finding of not guilty [] nolle
21 prosequi [] no bill [] referral to pre-prosecution diversion program [] Order of Conditional
22 Discharge under Section 31-20-13 (1994) NMSA 1978 [] other dismissal/discharge
23 *(explain):*
24
25 Degree of offense, if known *(e.g., misdemeanor, petty misdemeanor, etc.):*
26
27 Date of final disposition:
28
29 [] Check if additional pages attached.
30
31 [6-] 7. [] Petitioner has no cases related to the charges sought to be expunged.
32 [] The following cases are related to the charges sought to be expunged: *(Include case names*
33 *and numbers for any cases that were joined either with a co-defendant or joined as the result*
34 *of a plea.)*
35
36
37
38
39 [7-] 8. [] It has been one (1) year or more since the date of the final disposition of the charge(s)
40 Petitioner seeks to expunge.
41
42 [8-] 9. [] There is no other charge or proceeding pending against Petitioner.
43
44 [9-] 10. Petitioner asks this Court for an Order to Expunge arrest records and public records in
45 the custody of the following agencies:
46 [] District Court in the Judicial District;

RCR Nos. 1107 & S-1-RCR-2024-000992

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4 4. The following case(s) and record(s) are the subject of Petitioner’s Petition to Expunge
5 *(Include additional pages, if necessary):*
6 District Court case number(s): 24-CR-001234
7 Metropolitan/Magistrate/Municipal Court case number(s):
8
9 Law Enforcement Agency case number(s):
10 Arrest number(s):
11
12 5. The following appellate court cases(s) are related to Petitioner’s Petition to Expunge:
13 Court of Appeals case number(s):
14 Supreme Court case number(s):
15
16 [5-] 6. Petitioner was released without conviction for the following charges: *(Complete for each*
17 *charge sought to be expunged. Include additional pages if necessary.)*
18 (1) Date of arrest:
19 Name of offense and statute/ordinance number:
20 Final disposition of offense: *(check one)* [] acquittal or finding of not guilty [] nolle
21 prosequi [] no bill [] referral to pre-prosecution diversion program [] Order of Conditional
22 Discharge under Section 31-20-13 (1994) NMSA 1978 [] other dismissal/discharge
23 *(explain):*
24
25 Degree of offense, if known *(e.g., misdemeanor, petty misdemeanor, etc.):*
26
27 Date of final disposition:
28
29 [] Check if additional pages attached.
30
31 [6-] 7. [] Petitioner has no cases related to the charges sought to be expunged.
32 [] The following cases are related to the charges sought to be expunged: *(Include case names*
33 *and numbers for any cases that were joined either with a co-defendant or joined as the result*
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46 [] District Court in the Judicial District;

RCR Nos. 1107 & S-1-RCR-2024-000992

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1

☐ _____ County Sheriff's Department;

2

☐ District Attorney for the _____ Judicial District;

3

☐ New Mexico Department of Public Safety

4

☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); _____

5

6

☐ Metropolitan/Magistrate/Municipal Court in _____ (*location*);

7

☐ New Mexico State Police Investigations Bureau

8

☐ Other _____

9

10

~~[40-]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class

11

United States mail to:

12

(1) The District Attorney in the _____ Judicial District

13

(The District Attorney in the Judicial District where Petitioner's charge

14

originated)

15

16

(Address)

17

(2) The New Mexico Department of Public Safety

18

P.O. Box 1628, Santa Fe, New Mexico 87504-1628

19

20

~~[41-]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select*

21

one)

22

23

☐ District Court in the _____ Judicial District

24

☐ Metropolitan Court in _____ (*location*)

25

☐ Magistrate Court in _____ (*location*)

26

☐ Municipal Court in _____ (*location*)

27

28

~~[42-]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety

29

Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the

30

filing of the petition.

31

32

~~[43-]~~ 14. Petitioner has also included the following documentation related to Petitioner's criminal

33

history:

34

35

a. Docket sheet, arrest sheet, or other record detailing the offenses Petitioner is seeking to

36

expunge;

37

b. Documentation showing final disposition of the charges Petitioner is seeking to expunge;

38

c. Other: _____

39

(*list any other documentation provided with the petition*).

40

41

42

~~[44-]~~ 15. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other

43

electronic means as provided for in Rule 1-077.1(J) NMRA.

44

45

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October 31, 2025

1

☐ _____ County Sheriff's Department;

2

☐ District Attorney for the _____ Judicial District;

3

☐ New Mexico Department of Public Safety

4

☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); _____

5

6

☐ Metropolitan/Magistrate/Municipal Court in _____ (*location*);

7

☐ New Mexico State Police Investigations Bureau

8

☐ Other _____

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~~[40-]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class

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(1) The District Attorney in the _____ Judicial District

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(The District Attorney in the Judicial District where Petitioner's charge

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(Address)

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(2) The New Mexico Department of Public Safety

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P.O. Box 1628, Santa Fe, New Mexico 87504-1628

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~~[41-]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select*

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one)

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☐ District Court in the _____ Judicial District

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☐ Metropolitan Court in _____ (*location*)

25

☐ Magistrate Court in _____ (*location*)

26

☐ Municipal Court in _____ (*location*)

27

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~~[42-]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety

29

Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the

30

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39

(*list any other documentation provided with the petition*).

40

41

42

~~[44-]~~ 15. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other

43

electronic means as provided for in Rule 1-077.1(J) NMRA.

44

45

46

1

SIGNATURE SECTION

2

3I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico

4that the statements herein are true and correct.

5

6

7

Printed name of Petitioner

Date

8

9

Signature of Petitioner

10

11

Mailing Address

12

13

Telephone Number

Email

14

15

16

Attorney Name (if applicable)

Date

17

18

Attorney Signature

19

20

Mailing Address

21

22

Telephone Number

Email

23

24[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending

25or filed on or after January 28, 2022; provisionally adopted form approved as amended by

26Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after

27December 31, 2025.]

1

SIGNATURE SECTION

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3I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico

4that the statements herein are true and correct.

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Printed name of Petitioner

Date

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Signature of Petitioner

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Mailing Address

12

13

Telephone Number

Email

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16

Attorney Name (if applicable)

Date

17

18

Attorney Signature

19

20

Mailing Address

21

22

Telephone Number

Email

23

24[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending

25or filed on or after January 28, 2022; provisionally adopted form approved as amended by

26Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after

27December 31, 2025.]